

In Camera Stellata, coram Consilio ibidem, Venetis, 28 Octobr. 1607.¹

1607
Oct. 23

'Sr John Stafforde,² relator *versus* Parmeter, an Attornie of the Common place, for mainteynaunce & buyinge of a bonde; but the Defendaunte was acquted by the Cowrte, yet blamed for that he woulde intermeddle in sollicitinge or followinge any Cause in any Cowrte but where he ys an attornie, for no man Can be a generall sollicitor, & the lawe takes knowledge of none to intermeddle wth lawe busynesses but *homo consiliarius et in lege peritus, et Attornatus siue procurator*; & they must doe it for there Fees; neyther can they disburse monie for Fees or Copies, but in there owne Cawses: & therefore that Attornie sayd well, w^{ch} was olde Crowe, when his Clyentes woulde haue him paye Fees & disburse monie for them, "I doe not loue," quothe he, "that any man showlde goe to lawe wth my monie." Which was Commended for a good & an honeste aunswere, & the man ys yet lyuinge, & hathe 500^{li} lande by the yeare. Yet yf a man wryte vnto an attornie to instructe or reteyne counselle, or take out proces for him, it is so Common & necessary for the poore of y^e Cuntrye that, albeit yt be an offence againste the lawe, yet this Cowrte will not sentence yt:

STAFFORD
v.
PARMETER
Maintenance
Acquittal

No man can
be a general
sollicitor

[p. 314]

'For a man to buye a dette or a bonde, it is againste a rule in lawe, that noe man Can graunte a thinge in action, excepte it be for the satisfaction of a trewe dette, *bona fide, sine fraude et dolo*, as it is 24 H. 6, 5 H. 7, 5 E. 4, & so did this defend^{te}; but he was blamed allso for Compoundinge a Cause wthout lycense of the Cowrte, for no man oughte to doe it.

Buying
debts or
bonds

'Sr John Stafforde was greatelye blamed by the Cowrte that beinge so worthye a gentleman, so honorablie discended, & otherwyse so well deseruinge in himselfe, that he woulde stoope to so base an office as to be an ynformer, whoe

Sir John
Stafford
blamed for
becoming
an informer

¹ Nine Councillors and Judges and the Earl of Essex at Calais, were present. 1596. Metcalfe, *A Book of Knights*, Knighted by he Lord Admiral 137.